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UNITED STATES DISTRICT COURT

FOR THE CENTRAL DISTRICT OF CALIFORNIA

UNITED STATES OF AMERICA,

Plaintiff,

v.

STATE OF CALIFORNIA, *et al.*,

Defendants.

Case No. 2:26-cv-12025

UNITED STATES' NOTICE OF APPEAL

Hon. David O. Carter
United States District Judge

On October 15, 2026, the United States filed its complaint in this action, seeking statewide declaratory and injunctive relief to enjoin the state of California from continuing to send and tabulate vote-by-mail ballots cast by ineligible noncitizens to illegally participate in federal elections. Dkt. 1.

On October 19, 2026, the United States filed an emergency *ex parte* application for injunctive relief, including a temporary restraining order and preliminary injunction.[1] Dkt. 62. The United States concurrently requested an expedited ruling on its emergency application by 12:00 p.m. on October 22, 2026. Dkt. 67. The Court has not ruled on the United States' application.

Given the critical and exigent nature of the relief sought, the Court's silence is a constructive denial of the United States' emergency application for preliminary injunctive relief in its *Ex Parte* Application for Temporary Restraining Order and Order to Show Cause Why a Preliminary Injunction Should Not Issue, Dkts. 22-1, 62, which has the practical effect of denying a preliminary injunction. Accordingly, the United States hereby appeals the constructive denial of an injunction to the Ninth Circuit Court of Appeals.

DATED: October 22, 2026

Respectfully submitted,

/s/ Julie A. Hamill
Julie A. Hamill
Assistant United States Attorney

[1] The United States first filed its emergency application for a temporary restraining order and preliminary injunction on October 19, 2026, concurrently with an application to exceed this Court's word limitations. Dkts. 22, 22-1. The Court granted the United States' application to exceed the word limit, Dkt. 53, and the United States then immediately re-filed its emergency *ex parte* application on October 21, 2026. Dkt. 62.